

Republic of the Philippines)
In the Province Of Agusan Sur)

CONTRACT OF LEASE

KNOW ALL MEN BY THESE PRESENTS:

This CONTRACT OF LEASE made and executed by and between:

I, **ROSA S. CALUNSAG**, legal age, Filipino, with office address at Brgy 1, San Francisco, Agusan del Sur herein designated as the LESSOR:

not a lumber denter applicant

and

I, **NORIE ONGGO**, legal age, Filipino, residing at Brgy 1, San Francisco, Agusan del Sur herein designated as the LESSEE:

WITNESSETH THAT:

WHEREAS, the LESSOR is the absolute owner of a certain property situated at **Pk 3A, Brgy 1, San Francisco, Agusan del Sur.**

WHEREAS, the LESSEE desires to lease the said property for a specified period, as stipulated herein;

NOW, THEREFORE, THE PARTIES AGREE AS FOLLOWS:

- 1) **TERM:** This Contract of Lease shall be effective for one (1) year, commencing on **June 26, 2025** and will end on **June 26, 2026** Subject to an increase of ten (10%) percent upon renewal of contract;
- 2) **RENEWAL OF CONTRACT:** The LESSEE, should they wish to renew this contract, must inform the LESSOR of their intent to renew, at least one (1) month prior to the expiration of the existing contract. At that point, if agreed upon, both parties shall enter into a new contract of lease. The LESSOR reserves their right to refuse the offer to renew should they find it reasonable to do the same;
- 3) **USE:** In accordance with the intended purpose communicated by the LESSEE for utilizing the premises, the LESSEE shall obtain and furnish all requisite permits as mandated by law. Furthermore, the leased premises must be utilized in compliance with all applicable laws, pubhe order, and public policy. Any violation of these conditions grants the LESSORS the option to (a) require the LESSEE to cease the relevant activities, or (b) terminate the contract extra judicially;
- 4) **RENT:** The LESSOR hereby allows the use of the leased property to the LESSEE for a monthly rate of **SEVEN THOUSAND FIVE HUNDRED (Php 7,500.00) PESOS** Philippine Currency, exclusive of tax, payable on or before the 26 day of each month. All payments shall be made to the LESSOR;

Temporary improvements may be allowed upon mutual agreement. Unauthorized permanent improvements shall be removed at the LESSEE's expense;

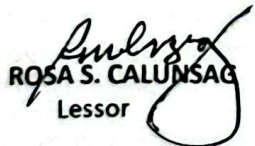
12. SUBLEASE PROHIBITION: The LESSEE shall not assign, lease, sublease, or allow any third party to use any portion of the leased premises without the prior written consent of the LESSOR;

13. COMPLIANCE OF LAWS: The LESSEE shall comply with any and all laws, ordinances, regulations or orders promulgated by proper government authorities arising from or regarding the use, occupation and sanitation of the leased premises, and non-compliance therewith shall be at the sole risk and expense of the LESSEE;

14. SURRENDER OF PREMISES: Upon the lease's expiration or termination for any authorized cause, the LESSEE agrees to promptly surrender and deliver without need of any demand the premises in a suitable condition, devoid of occupants, furnishings, and belongings owned by the LESSEE, and to return all keys to the LESSOR, her representatives, or assigns.

15. COURT ACTION: Should any of the parties herein be compelled to seek judicial relief against the other, the LESSEE hereby agrees to be liable for the attorney's fees in the amount of Fifty (50%) percent of the amount due and an addition Ten (10%) percent of the amount due as liquidated damages. Both parties hereby agree that the proper venue in Davao City shall have the exclusive jurisdiction over any litigation between the parties by virtue of this contract.

IN WITNESS WHEREOF, we have hereunto set our hands this NOV. 17, 2015 at San Francisco, Agusan del Sur, Philippines


ROSA S. CALUNSAG
Lessor


NORIE T. ONGGO
Lessee

Signed in the presence of:

5. DOWNPAYMENT: The LESSEE shall, upon signing this contract, pay the LESSOR an amount equivalent to two (2) months' rent in advance and one (1) month as security deposit. The security deposit shall not be used to cover any rental payments and must remain intact throughout the duration of the lease. Upon the expiration of this contract, the said security deposit shall be returned within thirty (30) days after the premises have been vacated and properly turned over to the LESSOR. Any unpaid bills, damages, or penalties incurred from any violation of this contract shall be deducted from the said deposit. In the event of pre-termination of this contract by the LESSEE, the security deposit shall be forfeited in favor of the LESSOR.

Upon the expiration of this contract, the said security deposit shall be returned in thirty (30) days after the premises have been vacated and turned over to the LESSOR and any unpaid bills, damages, and penalties incurred from any violation of this contract shall be deducted from the same. In the event of pre-termination of this contract by the LESSEE, the security deposit shall be forfeited in favour of the LESSOR;

6. DEFAULT PAYMENT: In case of default in the payment of the rent by the LESSEE for one (1) month, such as when the cheques are dishonoured, the LESSOR has the option to unilaterally terminate or rescind this contract, eject the lessee, and take possession of the property even without a court order. The LESSEE may forfeit the security deposit or advance that has been given to the LESSOR;

7. UTILITIES: The LESSEE further covenants and agrees to pay electric current, water, telephone and other rates of charges payable during the entire term of this lease, and to place and pay for labor at LESSEE'S expense with similar kind and quality any glass in the windows, toilet bowl, lavatory, bathroom fixture, electric fixtures, etc., of said premises which may be broken or have been cracked during said term.

In the event the LESSEE will not pay on time and update the bills for electricity and water, the LESSOR shall deduct the amount from the SECURITY DEPOSIT;

8. LESSOR'S RIGHT OF ENTRY: The LESSOR or its authorized agent shall have the right to enter the premises in the presence of the LESSEE or its representative at any reasonable hour of the day to examine the same or for the operation and maintenance of the building or any of its structures;

9. TURN OVER: The turnover of the property shall be endorsed upon the execution of this contract of lease and that the premises leased have been received by the LESSEE in good and habitable condition. The LESSEE is obligated to take care of the leased premises with the utmost diligence of a good father of a family;

10. REPAIRS AND ALTERATIONS: The LESSEE is responsible for maintaining the leased property in a clean and sanitary condition, ensuring it does not create a public or private nuisance or emit noxious odors or noises. Additionally, the LESSEE agrees to return the premises in the same condition as received, barring any alterations, additions, or improvements without the LESSOR'S prior written consent;

11. PERMANENT IMPROVEMENTS: The LESSEE shall not make any permanent improvements on the leased premises unless with prior written consent from the LESSOR.

public of the Philippines)
the Province Of Agusan Sur)

ACKNOWLEDGMENT

In the Province Of Agusan Sur Philippines, this 17 NOV 2025, appeared before me the parties who represented to me to be the same persons who executed the foregoing instrument, consisting of four (4) pages including this page wherein this acknowledgement is written, signed by the parties and their instrumental witnesses on each and every page thereof and that they acknowledged to me that the same is their own free act and deed.

WITNESS MY HAND AND SEAL, this 17 NOV 2025 in Davao City, Philippines.

Doc No. 87 ;
Page No. 18 ;
Book No. 118 ;
Series of 2025.

ATY. HILARION P. CLAPIS, JR.
NOTARY PUBLIC
UNTIL DECEMBER 31 2028
ROLL OF ATTORNEY NO. 2044
IBP NO. 445775/04-04-2024
PTR NO. 0234964/01-09-2024
TIN : 168-404-635
MCLE COMPL. NO. VI-0032986/11-28-24
MCLE COM. NO. VI-CERTIFICATE BEFORE
THRU WEBINAR IBP QUEZON CITY